

Court No. - 21

Case :- WRIT - C No. - 3366 of 2023

Petitioner :- Shivlal Jaiswal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Prakash Tripathi, Manoj Kumar
Srivastava

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The petitioner has challenged the recovery citation dated 16.12.2022 issued by respondent no. 4 for recovery of electricity dues in a case of theft of electricity.

Smt. Rishu Mishra, learned counsel for the respondent-Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed after following the procedure prescribed under the Electricity Supply Code, 2005. A copy of the letter issued in this regard by the Executive Engineer dated 23.1.2023 has also been placed before us for perusal.

Having regard to the above statement of learned counsel for the respondent-Electricity Department, we dispose of the instant petition in same terms.

Order Date :- 31.1.2023

VMA

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)